

SENATE No. 3215

Senate, July 23, 2026 -- Text of amendment (234) (offered by Senator Fernandes) to the Ways and Means amendment (Senate, No. 3178) to the House Bill relative to economic development in the commonwealth.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

1 by inserting at the end thereof the following sections:-

2 SECTION _. Section 7 of chapter 4 of the General Laws is hereby amended by striking
3 out clause Tenth and inserting in place thereof the following clause:-

4 "Tenth, "Illegal gaming", a banking or percentage game played with cards, dice, tiles,
5 dominoes, or an electronic, electrical or mechanical device or machine for money, property,
6 checks, credit or any representative of value, but excluding: (i) a lottery game conducted by the
7 state lottery commission under sections 24, 24A and 27 of chapter 10; (ii) a game conducted
8 under chapter 23K; (iii) sports wagering conducted under chapter 23N; (iv) pari-mutuel wagering
9 on live or simulcast horse races under chapters 128A and 128C; provided, however, that
10 historical horse racing, wagering on a historical horse race, or wagering by means of a historical
11 horse racing terminal shall not constitute pari-mutuel wagering on horse races for purposes of
12 this clause; (v) a game of bingo conducted under chapter 271; and (vi) charitable gaming
13 conducted under said chapter 271."

14 SECTION _. Section 7 of chapter 23K of the General Laws is hereby amended by adding
15 the following subsection:-

"(c) Nothing in this section, chapter 128A, chapter 128C, or any other general or special law shall be construed to authorize the commission to approve, license, regulate, permit, or otherwise allow historical horse racing, wagering on a historical horse race, or the operation of a historical horse racing terminal. The commission's rulemaking, licensing, enforcement, adjudicatory, and approval authority with respect to pari-mutuel wagering, racing, simulcasting, and account wagering shall not include authority to authorize or regulate historical horse racing, wagering on a historical horse race, or historical horse racing terminals."

SECTION __. Section 1 of chapter 128A of the General Laws is hereby amended by inserting after the definition of "Commission" the following 3 definitions:-

"Historical horse race", any horse race, whether running horse or harness, that was previously conducted at a licensed pari-mutuel facility, concluded with official results, and concluded without scratches, disqualifications, or dead-heat finishes.

"Historical horse racing", wagering on a historical horse race, whether conducted by means of an electronic, electrical, mechanical, computerized, video, mobile, account-wagering, or other device, terminal, system, or platform, and whether the race is displayed by replay, animation, video recording, graphical representation, or any other method.

"Historical horse racing terminal", any electronic, electrical, mechanical, computerized, video, or other device, terminal, machine, equipment, system, or platform that allows, facilitates, displays, processes, records, or resolves a wager on historical horse racing, including any device that depicts or simulates a game of chance, slot machine, or video game in connection with a historical horse race."

SECTION __. Section 5 of said chapter 128A is hereby amended by adding the following paragraph:-

No pari-mutuel or certificate system of wagering authorized by this section shall include, be construed to include, or be used to conduct historical horse racing, wagering on a historical horse race, or wagering by means of a historical horse racing terminal. Historical horse racing shall not be deemed wagering on the speed or ability of horses performing in races held or conducted by a licensee at a racing meeting.

SECTION __. Section 5C of said chapter 128A is hereby amended by inserting after the definition of “account wagering” the following sentence:-

"Account wagering shall not mean or include historical horse racing, wagering on a historical horse race, wagering by means of a historical horse racing terminal, or any televised, video, computer, mobile, or electronic screen depicting a video game of chance or slot machine in connection with a historical horse race."

SECTION __. Said chapter 128A is hereby further amended by inserting after section 5C the following section:-

"Section 5D. Historical horse racing prohibited.

(a) Notwithstanding any general or special law to the contrary, no racing meeting licensee, racing licensee, simulcasting licensee, account-wagering provider, gaming licensee, gaming establishment, or other person shall conduct, operate, host, manage, advertise, promote, facilitate, offer, accept, place, process, or settle a wager on historical horse racing or on a historical horse race.

(b) No person shall own, lease, possess, install, maintain, make available, or use a historical horse racing terminal for wagering in the commonwealth.

(c) Historical horse racing shall not be considered horse racing, a racing meeting, live racing, simulcast wagering, account wagering, pari-mutuel wagering, or wagering on horse races under this chapter, chapter 128C, section 7 of chapter 4, section 5B of chapter 271, section 17A of chapter 271, or any other general or special law.

(d) A license, approval, regulation, order, plan of operation, condition, contract, or other authorization issued or approved by the commission or any other governmental body shall be void to the extent it purports to authorize historical horse racing, wagering on a historical horse race, or use of a historical horse racing terminal.

(e) A violation of this section shall constitute cause for suspension, revocation, or nonrenewal of any license issued under this chapter or chapter 128C. The commission may impose a civil administrative penalty of not more than \$10,000 for each violation, and each day on which historical horse racing is conducted or a historical horse racing terminal is made available for wagering shall constitute a separate violation."

SECTION __. Section 9 of said chapter 128A is hereby amended by inserting after the fourth paragraph the following paragraph:-

"The commission's rulemaking and other authority, whether derived from this section, section 5C, chapter 23K, chapter 128C, or any other general or special law, shall pertain only to horse racing, simulcast wagering, and account wagering as expressly authorized by this chapter and chapter 128C. Such authority shall not include authority to expand gambling or to approve, license, regulate, permit, or otherwise allow historical horse racing, wagering on a historical

horse race, or historical horse racing terminals by rulemaking, adjudication, licensing, review or approval of a plan of operation, approval of a proposal or request, technical certification, enforcement discretion, or any other commission or agency action."

SECTION __. Section 1 of chapter 128C of the General Laws is hereby amended by adding the following definition:-

"“Historical horse racing”, “historical horse race”, and “historical horse racing terminal” shall have the same meanings as in section 1 of chapter 128A."

SECTION __. Section 2 of said chapter 128C is hereby amended by adding the following paragraph:-

"No right to simulcast live races, accept simulcast wagers, conduct simulcast wagering, or participate as a host track or guest track under this chapter shall include the right to conduct historical horse racing, accept wagers on a historical horse race, or use a historical horse racing terminal."

SECTION __. Said chapter 128C is hereby further amended by inserting after section 8 the following section:-

"Section 8A. Historical horse racing excluded.

No simulcast, simulcast wager, commingled pari-mutuel pool, account wagering activity, guest track activity, host track activity, or other activity authorized under this chapter shall include historical horse racing, wagering on a historical horse race, or use of a historical horse racing terminal. The commission shall not promulgate regulations or issue any license, approval,

100 order, or other authorization under this chapter that authorizes historical horse racing, wagering
101 on a historical horse race, or use of a historical horse racing terminal."

102 SECTION __. Subsection (c) of section 5B of chapter 271 of the General Laws is hereby
103 amended by striking out clause (2) and inserting in place thereof the following clause:-

104 "(2) as pari-mutuel wagering on live or simulcast horse races under chapters 128A and
105 128C; provided, however, that this clause shall not apply to historical horse racing, wagering on
106 a historical horse race, or wagering by means of a historical horse racing terminal;"

107 SECTION __. Section 17A of said chapter 271 is hereby amended by adding the following
108 sentence:-

109 "For the avoidance of doubt, the exception in this section for wagers authorized pursuant
110 to section 5C of chapter 128A shall not apply to historical horse racing, wagering on a historical
111 horse race, or wagering by means of a historical horse racing terminal."

112 SECTION __. Any regulation, license condition, approval, plan of operation, technical
113 certification, contract, or other authorization issued before the effective date of this act that
114 purports to authorize historical horse racing, wagering on a historical horse race, or use of a
115 historical horse racing terminal shall be void and unenforceable.